

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
MARCUS SIMMONS,

Plaintiff,

SUMMONS

-against-

Jury Trial Demanded

THE CITY OF NEW YORK, DET. FRANCISCO ADAMES, Tax Id. No. 939842, Individually and in his Official Capacity, DET. HOLLYANN YEARWOOD, Tax Id. No. 940121, Individually and in her Official Capacity, DET. PAUL CHIERICO, Tax Id. No. 936344, Individually and in his Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown).

Plaintiff designates Queens County as the place of trial.

The basis of venue is:
CPLR § 504(3)

Defendants.

-----X

To the above-named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
May 27, 2020COHEN & FITCH LLP
Attorneys for Plaintiff
225 Broadway, Suite 2700
New York, N.Y. 10007
(212) 374-9115

TO:

JAMES E. JOHNSON
Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007DET. FRANCISCO ADAMES, Tax Id. No. 939842
113th Precinct Detective Squad
167-02 Baisley Blvd, Jamaica, NY 11434

DET. HOLLYANN YEARWOOD, Tax Id. No. 940121
113th Precinct Detective Squad
167-02 Baisley Blvd, Jamaica, NY 11434

DET. PAUL CHIERICO, Tax Id. No. 936344
113th Precinct Detective Squad
167-02 Baisley Blvd, Jamaica, NY 11434

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
MARCUS SIMMONS,

Plaintiff,

-against-

VERIFIED COMPLAINT

Jury Trial Demanded

BASIS FOR VENUE:

CPLR § 504(3)

THE CITY OF NEW YORK, DET. FRANCISCO ADAMES, Tax Id. No. 939842, Individually and in his Official Capacity, DET. HOLLYANN YEARWOOD, Tax Id. No. 940121, Individually and in her Official Capacity, DET. PAUL CHIERICO, Tax Id. No. 936344, Individually and in his Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown).

Defendants.

-----X

Plaintiff MARCUS SIMMONS by his attorneys, COHEN & FITCH LLP, complaining of the defendants, respectfully allege as follows:

FACTS

1. Plaintiff MARCUS SIMMONS is an African-American male and has been at all relevant times a resident of Queens County in the State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned the individually named defendants, DET. FRANCISCO ADAMES, Tax Id. No. 939842, DET. HOLLYANN YEARWOOD, Tax Id. No. 940121, DET. PAUL CHIERICO, Tax Id. No. 936344, and POLICE OFFICERS “JOHN DOE” #1-10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages, and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

The Incident

8. On or about February 27, 2019, in the County of Queens, City, and State of New York, plaintiff MARCUS SIMMONS was lawfully in the vicinity of 127-02 Farmers Blvd. Queens, NY (Clean Rite Center) doing his laundry.

9. At approximately 10:20 p.m., on the aforementioned date and at the aforementioned location, plaintiff was accosted by multiple NYPD officers including defendants ADAMES, YEARWOOD, CHIERICO, and/or POLICE OFFICERS “JOHN DOE” #1-10, who

informed him that they were conducting an investigation and requested that he provide identification.

10. Plaintiff complied, and as he went to obtain his identification from his wallet, he was violently assaulted by NYPD officers – namely, defendants ADAMES, YEARWOOD, CHIERICO, and/or POLICE OFFICERS “JOHN DOE” #1-10 – who, inter alia, took him to the ground and then punched him about his head and body and kneed him in the back causing him physical injuries and substantial pain and/or were present when this assault occurred and did not intervene to stop it.

11. At no time on February 27, 2019, was the level of force employed by defendants ADAMES, YEARWOOD, CHIERICO, and/or POLICE OFFICERS “JOHN DOE” #1-10 objectively unreasonable.

12. Thereafter, said officers – defendants ADAMES, YEARWOOD, CHIERICO, and/or POLICE OFFICERS “JOHN DOE” #1-10 – placed plaintiff under arrest by handcuffing his arms tightly behind his back, searched him, and then placed him in a police vehicle.

13. At no time on February 27, 2019, did defendants ADAMES, YEARWOOD, CHIERICO, and/or POLICE OFFICERS “JOHN DOE” #1-10 possess probable cause to arrest plaintiff.

14. At no time on February 27, 2019, did defendants ADAMES, YEARWOOD, CHIERICO and/or POLICE OFFICERS “JOHN DOE” #1-10 possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

15. At no time on February 27, 2019, did defendants ADAMES, YEARWOOD, CHIERICO and/or POLICE OFFICERS “JOHN DOE” #1-10 possess information that would

lead a reasonable officer to believe probable cause and/or reasonable suspicion existed to search plaintiff's persons or effects nor did plaintiff consent to this search.

16. Thereafter, plaintiff was transported to a nearby police precinct where he was searched, fingerprinted, photographed, confined against his will in a holding cell for several hours, and charged with crimes by defendants ADAMES, YEARWOOD, CHIERICO and/or POLICE OFFICERS "JOHN DOE" #1-10. Specifically, plaintiff was charged with Attempted Murder, Assault, Obstructing Governmental Administration, Resisting Arrest, and Criminal Possession of a Controlled Substance.

17. After being detained at the aforementioned precinct for several hours plaintiff was transported to a nearby hospital for medical treatment before being transported back to said precinct.

18. Subsequently, plaintiff was transported to Central Booking where he was searched again, subjected to a retina scan (a.k.a. an "eye scan"), photographed, moved from cell to cell, and further detained. No contraband was found on plaintiff's person and/or effects as a result of any searches nor did plaintiff have custody or control over any contraband.

19. Following his arraignment, bail was set and plaintiff was further detained.

20. In connection with plaintiffs' arrest, defendants ADAMES, YEARWOOD, CHIERICO and/or POLICE OFFICERS "JOHN DOE" #1-10 filled out false and/or misleading police reports and forwarded them to prosecutors at the Queens County District Attorney's Office. Thereafter, defendants ADAMES, YEARWOOD, CHIERICO, and/or POLICE OFFICERS "JOHN DOE" #1-10 repeated the aforementioned false and misleading information regarding the facts and circumstances of plaintiff's arrest. Specifically, defendants ADAMES, YEARWOOD, CHIERICO and/or POLICE OFFICERS "JOHN DOE" #1-10 falsely stated, *inter*

alia, that they were informed plaintiff had stabbed another individual multiple times, that plaintiff possessed controlled substances in that a quantity of controlled substances were recovered from plaintiff's pants pocket, that as plaintiff was being placed under arrest, he flailed his arms, twisted his body, kicked his legs, and then laid on top of his arms and hands in an attempt to avoid being handcuffed and placed under arrest, and that plaintiff's actions while being placed under arrest caused said officers to sustain injuries and suffer substantial pain.

21. At no time on February 27, 2019, did plaintiff possess any controlled substances and/or any other contraband, have custody and control over any controlled substances and/or any other contraband, nor did he commit any crimes or offenses or behave unlawfully in any way, nor was any evidence or contraband found on his person or in his effects.

22. As a result of the foregoing, plaintiff spent approximately ten (10) months in custody and made multiple court appearances before all charges against him were dismissed in their entirety on or about January 21, 2020.

23. In addition, as a result of the foregoing, plaintiff suffered physical injuries including, but not limited to, a fractured elbow, causing him severe pain and discomfort and requiring medical treatment.

24. As a result of the foregoing, plaintiff sustained, *inter alia*, loss of liberty, physical injuries, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of their constitutional rights.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

25. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

26. All of the aforementioned acts of defendants, their agents, servants, and employees, were carried out under the color of state law.

27. All of the aforementioned acts deprived plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

28. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

29. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

30. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SECOND CLAIM FOR RELIEF ARISING
FALSE ARREST UNDER 42 U.S.C. § 1983**

31. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

32. As a result of the aforesaid conduct by defendants ADAMES, YEARWOOD, CHIERICO and/or POLICE OFFICERS "JOHN DOE" #1-10, plaintiff was subjected to an illegal, improper, and false arrest by the defendants ADAMES, YEARWOOD, CHIERICO

and/or POLICE OFFICERS “JOHN DOE” #1-10, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

33. As a result of the foregoing, plaintiff’s liberties were restricted for an extended period of time, he was put in fear for his safety, and he was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

**THIRD CLAIM FOR RELIEF ARISING
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

34. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

35. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

36. Defendants ADAMES, YEARWOOD, CHIERICO, and/or POLICE OFFICERS “JOHN DOE” #1-10 misrepresented and falsified evidence before the New York County District Attorney.

37. Defendants ADAMES, YEARWOOD, CHIERICO, and/or POLICE OFFICERS “JOHN DOE” #1-10 did not make a complete and full statement of facts to the District Attorney.

38. Defendants ADAMES, YEARWOOD, CHIERICO, and/or POLICE OFFICERS “JOHN DOE” #1-10 withheld exculpatory evidence from the District Attorney.

39. Defendants ADAMES, YEARWOOD, CHIERICO, and/or POLICE OFFICERS “JOHN DOE” #1-10 were directly and actively involved in the initiation of criminal proceedings against plaintiff.

40. Defendants ADAMES, YEARWOOD, CHIERICO, and/or POLICE OFFICERS “JOHN DOE” #1-10 lacked probable cause to initiate criminal proceedings against plaintiff.

41. Defendants ADAMES, YEARWOOD, CHIERICO, and/or POLICE OFFICERS “JOHN DOE” #1-10 acted with malice in initiating criminal proceedings against plaintiff.

42. Defendants ADAMES, YEARWOOD, CHIERICO, and/or POLICE OFFICERS “JOHN DOE” #1-10 were directly and actively involved in the continuation of criminal proceedings against plaintiff.

43. Defendants ADAMES, YEARWOOD, CHIERICO, and/or POLICE OFFICERS “JOHN DOE” #1-10 lacked probable cause to continue criminal proceedings against plaintiff.

44. Defendants ADAMES, YEARWOOD, CHIERICO, and/or POLICE OFFICERS “JOHN DOE” #1-10 acted with malice in continuing criminal proceedings against plaintiff.

45. Defendants ADAMES, YEARWOOD, CHIERICO, and/or POLICE OFFICERS “JOHN DOE” #1-10 misrepresented and falsified evidence throughout all phases of the criminal proceedings.

46. Specifically, defendants’ ADAMES, YEARWOOD, CHIERICO, and/or POLICE OFFICERS “JOHN DOE” #1-10 made the aforementioned false and misleading allegations regarding the circumstances surrounding plaintiff’s arrest.

47. Notwithstanding the perjurious and fraudulent conduct of defendants ADAMES, YEARWOOD, CHIERICO, and/or POLICE OFFICERS “JOHN DOE” #1-10, the criminal proceedings were terminated in plaintiff’s favor on or about January 21, 2020.

48. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FOURTH CLAIM FOR RELIEF
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983

49. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

50. Defendants ADAMES, YEARWOOD, CHIERICO, and/or POLICE OFFICERS “JOHN DOE” #1-10 created false evidence against the plaintiff.

51. Defendants ADAMES, YEARWOOD, CHIERICO and/or POLICE OFFICERS “JOHN DOE” #1-10 forwarded false evidence and false information to prosecutors in the Kings County District Attorney’s Office – namely, defendants ADAMES, YEARWOOD, CHIERICO and/or POLICE OFFICERS “JOHN DOE” #1-10 falsely stated, *inter alia*, that they were informed plaintiff had stabbed another individual multiple times, that plaintiff possessed controlled substances in that a quantity of controlled substances were recovered from plaintiff’s pants pocket, that as plaintiff was being placed under arrest, he flailed his arms, twisted his body, kicked his legs, and then laid on top of his arms and hands in an attempt to avoid being handcuffed and placed under arrest, and that plaintiff’s actions while being placed under arrest caused said officers to sustain injuries and suffer substantial pain.

52. Defendants ADAMES, YEARWOOD, CHIERICO, and/or POLICE OFFICERS “JOHN DOE” #1-10 misled the prosecutors by creating false evidence against the plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.

53. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants ADAMES, YEARWOOD, CHIERICO and/or POLICE OFFICERS “JOHN DOE” #1-10 violated plaintiff’s constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

54. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

SEVENTH CLAIM FOR RELIEF
EXCESSIVE FORCE UNDER 42 U.S.C. § 198

55. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

56. The level of force employed by defendants ADAMES, YEARWOOD, CHIERICO and/or POLICE OFFICERS "JOHN DOE" #1-10 was objectively unreasonable and in violation of the constitutional rights of the plaintiff.

57. As a result of the foregoing, plaintiff sustained, inter alia, bodily injuries, including, but not limited to, a fractured elbow, causing him severe pain and discomfort and which required medical treatment.

EIGHTH CLAIM FOR RELIEF
FAILURE TO INTERCEDE UNDER 42 U.S.C. § 198

58. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

59. The defendants – ADAMES, YEARWOOD, CHIERICO and/or POLICE OFFICERS "JOHN DOE" #1-10 – had an affirmative duty to intercede when plaintiff's constitutional rights were being violated in their presence by the use of excessive force and by misrepresenting and falsifying evidence regarding the circumstances surrounding plaintiff's arrest throughout all phases of the criminal proceedings.

60. Defendants – ADAMES, YEARWOOD, CHIERICO, and/or POLICE OFFICERS "JOHN DOE" #1-10 – further violated plaintiff's constitutional rights when they

failed to intercede and prevent the violation or further violation of plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.

61. As a result of the defendants' ADAMES, YEARWOOD, CHIERICO and/or POLICE OFFICERS "JOHN DOE" #1-10 failure to intercede when plaintiff's constitutional rights were being violated in defendants' ADAMES, YEARWOOD, CHIERICO and/or POLICE OFFICERS "JOHN DOE" #1-10 presence, plaintiff sustained, *inter alia*, physical and emotional injuries, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

NINTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

62. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

63. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

64. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,

- D. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and,
- E. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics; and,
- F. handcuffing all hospitalized prisoners for the entirety of their hospitalization regardless of their risk of flight or safety risk to others; and,
- G. utilizing excessive force in effectuating arrests; and,
- H. keeping arrestees handcuffed during hospitalization even when they pose no risk of flight or danger to the safety of others; and,
- I. failing to intercede to prevent violations of plaintiff's constitutional rights.

65. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being, and constitutional rights of the plaintiffs.

66. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiffs as alleged herein.

67. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiffs as alleged herein.

68. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiffs' constitutional rights.

69. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiffs' constitutional rights.

70. The acts complained of deprived the plaintiffs of their rights:
- A. Not to be deprived of liberty without due process of law;
 - B. To be free from seizure and arrest not based upon probable cause;
 - C. Not to have summary punishment imposed upon them; and
 - D. To receive equal protection under the law.

PENDANT STATE CLAIMS

71. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

72. On or about May 20, 2019, and within (90) days after the claims herein accrued, the plaintiff duly served upon, presented to, and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

73. Thereafter, on or about January 31, 2020, and within (90) days after the claims herein accrued, the plaintiff duly served upon, the plaintiff duly served upon, presented to, and filed with defendant THE CITY OF NEW YORK, an Amended Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

74. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

75. Defendant THE CITY OF NEW YORK demanded a hearing pursuant to General Municipal Law § 50-h and said hearing was held on May 1, 2020.

76. This action was commenced within one (1) year and ninety (90) days after the causes of action herein accrued.

77. Plaintiff has and/or will comply with all conditions precedent to maintaining the instant action.

78. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

FIRST CLAIM FOR RELIEF UNDER N.Y. STATE LAW
ASSAULT

79. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

80. Defendants ADAMES, YEARWOOD, CHIERICO, and/or POLICE OFFICERS “JOHN DOE” #1-10’s aforementioned actions placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

81. As a result of defendants’ ADAMES, YEARWOOD, CHIERICO, and/or POLICE OFFICERS “JOHN DOE” #1-10 conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

SECOND CLAIM FOR RELIEF UNDER N.Y. STATE LAW
BATTERY

82. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

83. Defendant police officers ADAMES, YEARWOOD, CHIERICO, and/or POLICE OFFICERS “JOHN DOE” #1-10 touched plaintiff in a harmful and offensive manner.

84. Defendant police officers ADAMES, YEARWOOD, CHIERICO, and/or POLICE OFFICERS “JOHN DOE” #1-10 did so without privilege or consent from plaintiff.

85. As a result of defendants' ADAMES, YEARWOOD, CHIERICO, and/or POLICE OFFICERS "JOHN DOE" #1-10 conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

THIRD CLAIM FOR RELIEF UNDER N.Y. STATE LAW
FALSE ARREST

86. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

87. Defendant police officers ADAMES, YEARWOOD, CHIERICO, and/or POLICE OFFICERS "JOHN DOE" #1-10 arrested plaintiff in the absence of probable cause and without a warrant.

88. As a result of the aforesaid conduct by defendants ADAMES, YEARWOOD, CHIERICO and/or POLICE OFFICERS "JOHN DOE" #1-10, plaintiff was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings. The aforesaid actions by the defendants constituted a deprivation of the plaintiff's rights.

FOURTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
FALSE IMPRISONMENT

89. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

90. As a result of the foregoing conduct by defendants ADAMES, YEARWOOD, CHIERICO and/or POLICE OFFICERS "JOHN DOE" #1-10, plaintiff was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for his safety, and humiliated and subjected to handcuffing and other physical restraints.

91. Plaintiff was conscious of said confinement and did not consent to same.

92. The confinement of plaintiff was without probable cause and was not otherwise privileged.

93. As a result of the aforementioned conduct, plaintiff has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

FIFTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
MALICIOUS PROSECUTION

94. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

95. On or about February 27, 2019, defendants ADAMES, YEARWOOD, CHIERICO, and/or POLICE OFFICERS "JOHN DOE" #1-10 commenced a criminal proceeding against plaintiff.

96. Defendants ADAMES, YEARWOOD, CHIERICO, and/or POLICE OFFICERS "JOHN DOE" #1-10 lacked probable cause to commence said criminal proceeding against plaintiff.

97. Defendants ADAMES, YEARWOOD, CHIERICO, and/or POLICE OFFICERS "JOHN DOE" #1-10 were motivated by actual malice in commencing said criminal proceeding against plaintiff.

98. From February 27, 2019, through January 21, 2020, plaintiff was forced to repeatedly make appearances in Criminal Court to defend himself against the unlawful prosecution initiated by defendants ADAMES, YEARWOOD, CHIERICO and/or POLICE OFFICERS "JOHN DOE" #1-10.

99. As a result of the malicious prosecution against him, plaintiff spent approximately ten (10) months making court appearances.

100. On or about January 21, 2020, the criminal prosecution against plaintiff terminated in his favor and all charges against him were dismissed.

101. As a result of the aforementioned conduct, plaintiff suffered mental and physical injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

SIXTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

102. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

103. The aforementioned conduct by defendants ADAMES, YEARWOOD, CHIERICO, and/or POLICE OFFICERS "JOHN DOE" #1-10 was extreme and outrageous and exceeded all reasonable bounds of decency.

104. The aforementioned conduct was committed by defendants ADAMES, YEARWOOD, CHIERICO, and/or POLICE OFFICERS "JOHN DOE" #1-10 while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

105. The aforementioned conduct was committed by defendants ADAMES, YEARWOOD, CHIERICO, and/or POLICE OFFICERS "JOHN DOE" #1-10 while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

106. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiff.

107. As a result of the aforementioned conduct, plaintiff suffered severe emotional distress and physical and mental injury together with embarrassment, humiliation, shock, fright, and loss of freedom.

SEVENTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

108. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

109. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned, and supervised all members of its Police Department, including the defendants individually named above.

110. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

111. Due to the negligence of the defendants as set forth above, plaintiff suffered physical and mental injury, pain, and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

WHEREFORE, plaintiffs respectfully request judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs, and disbursements of this action.

Dated: New York, New York
May 27, 2020

BY: _____/S_____
ILYSSA FUCHS
GERALD COHEN
JOSHUA FITCH
COHEN & FITCH LLP
225 Broadway, Suite 2700
New York, N.Y. 10007
(212) 374-9115

ATTORNEY'S VERIFICATION

ILYSSA S. FUCHS, an attorney duly admitted to practice law in the Courts of the State of New York, states:

That she is a member of the law firm of COHEN & FITCH, LLP the attorneys for the plaintiff MARCUS SIMMONS in the within entitled action.

That your deponent has read the foregoing **COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
May 27, 2020

_____/S_____
ILYSSA S. FUCHS